

Northern Ireland, that for the time being in force in the Isle of Man or that for the time being in force in any of the Channel Islands that corresponds to this Part of this Act ”.

2.—(1) This Act may be cited as the Road Traffic (Amendment) Act, 1960. Short title and extent.

(2) This Act shall not apply to Northern Ireland.

CHAPTER 52

Cyprus Act, 1960

ARRANGEMENT OF SECTIONS

1. Establishment of the Republic of Cyprus as an independent sovereign country.
2. The Sovereign Base Areas.
3. Operation of existing laws.
4. Citizenship.
5. Abolition of appeals to Privy Council.
6. Provision in event of change in relationship of Republic to the Commonwealth.
7. Short title and interpretation.

SCHEDULE.—Provisions as to Enactments.

An Act to make provision for, and in connection with, the establishment of an independent republic in Cyprus.

[29th July, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Her Majesty may by Order in Council (to be laid before Parliament after being made) declare that the constitution designated in the Order as the Constitution of the Republic of Cyprus shall come into force on such day as may be specified in the Order; and on that day there shall be established in the Island of Cyprus an independent sovereign Republic of Cyprus, and Her Majesty shall have no sovereignty or jurisdiction over the Republic of Cyprus. Establishment of the Republic of Cyprus as an independent sovereign country.

2.—(1) The Republic of Cyprus shall comprise the entirety of the Island of Cyprus with the exception of the two areas The Sovereign Base Areas. as mentioned in the following subsection, and—

(a) nothing in the foregoing section shall affect Her Majesty's sovereignty or jurisdiction over those areas;

(b) the power of Her Majesty to make or provide for the making of laws for the said areas shall include power

to make such laws (relating to persons or things either within or outside the areas) and such provisions for the making of laws (relating as aforesaid) as appear to Her Majesty requisite for giving effect to arrangements with the authorities of the Republic of Cyprus.

(2) The boundaries of the said areas shall, subject to the provisions of this section, be those defined by the maps, photographs and descriptive matter, authenticated by the signature of the Secretary of State, which have been deposited at the Commonwealth Relations Office and presented to Parliament by the Secretary of State by Command of Her Majesty.

(3) If Her Majesty by Order in Council declares that arrangements have been made—

- (a) for the demarcation of the said boundaries by two or more Commissioners appointed as specified in the arrangements ;
- (b) for the determination, in default of agreement between the Commissioners, of any question as to the interpretation of the maps, photographs or descriptive matter ; and
- (c) for the variation of the boundaries, as defined by the maps, photographs and descriptive matter, by agreement between the Commissioners where it appears to them expedient to do so on any grounds specified in the arrangements,

and that the Commissioners have made a report that the boundaries have been demarcated in accordance with the arrangements, then as from such date not earlier than the date of the report as may be specified in the Order in Council the boundaries of the said areas shall be the boundaries demarcated by the Commissioners.

Operation of
existing laws.

3.—(1) On and after the appointed day any existing law which operates as law of, or of any part of, the United Kingdom, being a law applying in relation to Cyprus or persons or things in any way belonging thereto or connected therewith, shall, save as provided after the passing of this Act by the authority having power to amend or repeal that law or by the following provisions of this Act, continue to apply in like manner in relation to the Republic of Cyprus or persons or things in any way belonging thereto or connected therewith :

Provided that, save as aforesaid and subject to the provisions of the Schedule to this Act, any such law which contains different provision with respect to a Commonwealth country mentioned in subsection (3) of section one of the British Nationality Act, 1948, and with respect to parts of Her Majesty's dominions outside the United Kingdom not so mentioned, or expressly excludes any such Commonwealth country to any extent, shall apply in

like manner and to the like extent (if any) with respect to the Republic of Cyprus as it applies with respect to the said Commonwealth country.

(2) As from the appointed day, the provisions of the Schedule to this Act shall have effect with respect to the enactments therein mentioned.

(3) Her Majesty may by Order in Council make such further adaptations (whether in relation to the Republic of Cyprus or in relation to the areas mentioned in subsection (1) of section two of this Act) in any Act of the Parliament of the United Kingdom passed before the appointed day, or in any instrument having effect under any such Act, as appear to Her necessary or expedient in consequence of the establishment of the Republic of Cyprus.

(4) An Order in Council under this section may be varied or revoked by a subsequent such Order and may, though made after the appointed day, be made so as to have effect from that day.

(5) An Order in Council under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(6) In this section "existing law" means any Act of Parliament (other than this Act) or other enactment or instrument whatsoever, and any rule of law, which is in force on the appointed day or, having been passed or made before the appointed day, comes into force after that day; and subsection (1) of this section shall apply in relation to existing law which operates as law of, or of any part of, Southern Rhodesia or any colony, protectorate or United Kingdom trust territory as it applies in relation to existing law which operates as law of, or of any part of, the United Kingdom, except that that subsection—

- (a) shall not apply in relation to any law passed by the Federal Legislature of Rhodesia and Nyasaland;
- (b) shall apply in relation to other law of, or of any part of, Southern Rhodesia so far only as concerns law which can be amended neither by a law passed by the Legislature thereof nor by a law passed by the said Federal Legislature; and
- (c) shall apply in relation to other law of, or of any part of, Northern Rhodesia or Nyasaland so far only as concerns law which cannot be amended by a law passed by the said Federal Legislature.

References in this subsection to a colony, a protectorate and a United Kingdom trust territory shall be construed as if they were references contained in the British Nationality Act, 1948.

(7) Nothing in this section shall be construed as continuing in force any enactment or rule of law limiting or restricting the legislative powers of the Republic of Cyprus.

(8) Nothing in this section shall be construed as requiring the application of any existing law to the Republic of Cyprus and the areas mentioned in subsection (1) of section two of this Act as one country.

Citizenship.

4.—(1) For the purpose of giving effect to any agreement for the establishment of the Republic of Cyprus, Her Majesty may by Order in Council provide that persons of such descriptions as may be specified in the Order shall cease to be citizens of the United Kingdom and Colonies on such date as may be so specified, and different dates may be specified in relation to different descriptions of persons:

Provided that a married woman shall not cease by virtue of an Order under this section to be a citizen of the United Kingdom and Colonies if on the date on which she would do so her husband is a citizen of the United Kingdom and Colonies and does not cease to be such a citizen on that date.

(2) If any person who in consequence of anything done before he attained the age of sixteen years ceased by virtue of an Order under this section to be a citizen of the United Kingdom and Colonies makes a declaration in the prescribed manner, within one year after his attaining the age of twenty-one years or such longer period as the Secretary of State may allow, of his intention to resume citizenship of the United Kingdom and Colonies, the Secretary of State shall cause the declaration to be registered; and thereupon that person shall become a citizen of the United Kingdom and Colonies.

(3) Where by virtue of an Order under this section a person of a description to which this subsection is applied by the Order ceases to be a citizen of the United Kingdom and Colonies and either—

- (a) is not, immediately after the time when he ceases to be such a citizen, a citizen of a country mentioned in subsection (1) of section six of the British Nationality Act, 1948 (which relates inter alia to the registration of Commonwealth citizens as citizens of the United Kingdom and Colonies); or
- (b) having been immediately after the said time a citizen of a country so mentioned, subsequently ceases to be one in consequence of an Order under section six of this Act or otherwise,

section six of the said Act of 1948 shall, as respects any application thereunder made before the end of the period of two years and six months beginning with the appointed day, apply in relation to him as if he were, or were still, a citizen of a country so mentioned.

(4) Subsection (2) of section six of the said Act of 1948 (which provides for the registration as a citizen of the United

Kingdom and Colonies of a woman who has been married to such a citizen) shall not apply to a woman by virtue of her marriage to a person who ceases, or but for his earlier death would have ceased, to be a citizen of the United Kingdom and Colonies by virtue of an Order under this section.

(5) An Order in Council under this section may be varied or revoked by a subsequent such Order.

(6) An Order in Council under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(7) This section shall be construed as one with the British Nationality Act, 1948.

5. On and after the appointed day no appeal shall lie to Her Majesty in Council from any court in the Republic of Cyprus; and any appeal to Her Majesty in Council from any court in the Island of Cyprus which is pending on the appointed day shall abate on that day.

6.—(1) For the purpose of giving effect to any decision that the Republic of Cyprus shall not be a country specified in subsection (3) of section one of the British Nationality Act, 1948, Her Majesty may by Order in Council direct that subsection (1) of section three of this Act, so far as it relates to the said subsection (3), and paragraph 1 of the Schedule to this Act, shall cease to have effect.

(2) An Order in Council under this section may provide either that all the provisions of section three of this Act and of the Schedule thereto (except in so far as they relate to the areas mentioned in subsection (1) of section two of this Act) shall cease to have effect or that those provisions shall continue in force to such extent and subject to such modifications as may be specified in the Order, may make such adaptations or modifications of any Act (other than this Act) in force at the making of the Order or passed before then and coming into force thereafter, or any instrument having effect under any such Act, as appear to Her Majesty in Council expedient for the purposes or in consequence of the Order, and may contain incidental, consequential and supplemental provisions.

(3) An Order in Council under this section may be varied or revoked by a subsequent such Order, and any amending Order may be made so as to have effect from any date not earlier than the making of the Order amended.

(4) No recommendation shall be made to Her Majesty in Council to make an Order in Council under this section unless a draft of the Order has been laid before Parliament and approved by a resolution of each House of Parliament.

Short title and interpretation.

7.—(1) This Act may be cited as the Cyprus Act, 1960.

(2) In this Act “the appointed day” means the day specified by Order in Council under section one of this Act, “the Island of Cyprus” includes any islands included in Cyprus before the appointed day, and references to the Island of Cyprus or any part thereof include references to the territorial waters of the Island or part.

SCHEDULE

PROVISIONS AS TO ENACTMENTS

1.—(1) Subsection (3) of section one of the British Nationality Act, 1948 (which specifies the Commonwealth countries whose citizens are British subjects or Commonwealth citizens) shall have effect as if the word “and” in the last place where it occurs were omitted and at the end there were added the words “and the Republic of Cyprus”.

(2) In relation to the Republic of Cyprus, any reference in the said Act of 1948 or in the British Nationality Act, 1958, to the High Commissioner for Her Majesty’s government in the United Kingdom shall be construed as a reference to the chief representative in the Republic of Cyprus of Her Majesty’s said government, whether he is known by the title of High Commissioner for that government or by any other title.

2. The proviso to subsection (1) of section three of this Act shall not apply to the Exchange Control Act, 1947.

3. In subsection (4) of section two of the Import Duties Act, 1958, after the word “Ceylon” there shall be inserted the words “the Republic of Cyprus”.

4. In the definitions of “Commonwealth force” in subsection (1) of section two hundred and twenty-five of the Army Act, 1955, and in subsection (1) of section two hundred and twenty-three of the Air Force Act, 1955, and in the definition of “Commonwealth country” in subsection (1) of section one hundred and thirty-five of the Naval Discipline Act, 1957—

(a) the word “or” (being, in the said Acts of 1955, that word in the last place where it occurs in those definitions) shall be omitted; and

(b) at the end there shall be added the words “or the Republic of Cyprus”.

5. Section four of the Visiting Forces (British Commonwealth) Act, 1933 (which deals with attachment and mutual powers of command) shall apply in relation to forces raised in the Republic of Cyprus as it applies in relation to forces raised in Dominions within the meaning of the Statute of Westminster, 1931.

6. In paragraph (a) of subsection (1) of section one of the Visiting Forces Act, 1952 (which specifies the countries to which that Act applies) the word “or” in the first place where it occurs shall be

omitted, and at the end there shall be added the words "the Republic of Cyprus or".

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7. In section four hundred and sixty-one of the Income Tax Act, 1952 (which relates to exemption from income tax in the case of certain Commonwealth representatives and their staffs)—

- (a) in subsection (2), the word "or" (in the last place where it occurs before the words "for any state") shall be omitted, and immediately before the words "for any state" there shall be inserted the words "or the Republic of Cyprus";
- (b) in subsection (3), after the word "or" (in the last place where it occurs before the words "and 'Agent-General'") there shall be inserted the words "the representative of the Republic of Cyprus or the High Commissioner".

8. In subsection (6) of section one of the Diplomatic Immunities (Commonwealth Countries and Republic of Ireland) Act, 1952, immediately before the word "and" in the last place where it occurs there shall be inserted the words "the Republic of Cyprus".

9.—(1) Subject to the provisions of this paragraph, the Colonial Stock Acts, 1877 to 1948, shall apply in relation to the Republic of Cyprus as they apply in relation to a Dominion within the meaning of the Colonial Stock Act, 1934.

(2) In section twenty of the Colonial Stock Act, 1877 (which relates to the jurisdiction of courts in the United Kingdom as to colonial stock) for the second paragraph there shall be substituted the following subsections, that is to say—

"(2) Any person claiming to be interested in colonial stock to which this Act applies, or in any dividend thereon, may institute civil proceedings in the United Kingdom against the registrar in relation to that stock or dividend.

(3) Notwithstanding anything in the foregoing provisions of this section, the registrar shall not by virtue of an order made by any court in the United Kingdom in any such proceedings as are referred to in this section be liable to make any payment otherwise than out of moneys in his possession in the United Kingdom as registrar."

(3) The Colonial Stock Act, 1934, shall apply in relation to stock of the Republic of Cyprus as if in paragraph (a) of subsection (1) of section one of that Act for any reference to Her Majesty's Government in the Dominion or to the Parliament of the Dominion there were substituted a reference to the Government or the Legislature of the Republic of Cyprus, and for any reference to any legislation being submitted for the Royal Assent there were substituted a reference to that legislation becoming law.

(4) During any period on and after the appointed day during which there is in force as part of the law of the Republic of Cyprus any instrument passed or made before that day which makes provision corresponding to the undertaking required by paragraph (a) of subsection (1) of section one of the said Act of 1934,

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paragraphs (a) and (b) of that subsection shall be deemed to have been complied with in the case of the Republic of Cyprus.

10.—(1) In subsection (2) of section four hundred and twenty-seven of the Merchant Shipping Act, 1894, as substituted by section two of the Merchant Shipping (Safety Convention) Act, 1949, the word “or” (in the last place where it occurs before the words “or in any”) shall be omitted, and immediately before the words “or in any” there shall be inserted the words “or the Republic of Cyprus”.

(2) In the proviso to subsection (2) of section six of the Merchant Shipping Act, 1948, the word “or” (in the last place where it occurs) shall be omitted, and at the end there shall be added the words “or the Republic of Cyprus”.

11. In the definition of “excepted ship or aircraft” in paragraph 3 of the Third Schedule to the Emergency Laws (Repeal) Act, 1959, the word “or” (in the last place where it occurs before the words “or in any”) shall be omitted, and immediately before the words “or in any” there shall be inserted the words “or the Republic of Cyprus”.

12. The power conferred by section five of the Seal Fisheries (North Pacific) Act, 1912, to extend certain provisions of that Act to Cyprus shall cease to be exerciseable, and the words “and to Cyprus” in subsection (1) of that section are hereby repealed.

13.—(1) The references in section thirty-one of the Copyright Act, 1956, to a colony shall not include the Republic of Cyprus.

(2) If the Copyright Act, 1911, so far as in force in the law of the Republic of Cyprus, is repealed or amended by that law at a time when sub-paragraph (2) of paragraph 39 of the Seventh Schedule to the Copyright Act, 1956 (which applies certain provisions of that Act in relation to countries to which the said Act of 1911 extended) is in force in relation to the Republic of Cyprus, the said sub-paragraph (2) shall thereupon cease to have effect in relation to the Republic of Cyprus.

14. In subsection (2) of section two of the Indian and Colonial Divorce Jurisdiction Act, 1926 (which enables section one of the Act to be extended to certain countries, but not to any of the countries named in the said subsection (2)) the word “and” shall be omitted in all places where it occurs except the first such place and except in the expression “Rhodesia and Nyasaland”, and at the end there shall be added the words “and the Republic of Cyprus”.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Colonial Stock Act, 1877	40 & 41 Vict. c. 59.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Copyright Act, 1911	1 & 2 Geo. 5. c. 46.
Seal Fisheries (North Pacific) Act, 1912 ...	2 & 3 Geo. 5. c. 10.
Indian and Colonial Divorce Jurisdiction Act, 1926.	16 & 17 Geo. 5. c. 40.
Statute of Westminster, 1931	22 & 23 Geo. 5. c. 4.
Visiting Forces (British Commonwealth) Act, 1933.	23 & 24 Geo. 5. c. 6.
Colonial Stock Act, 1934	24 & 25 Geo. 5. c. 47.
Exchange Control Act, 1947	10 & 11 Geo. 6. c. 14.
Merchant Shipping Act, 1948	11 & 12 Geo. 6. c. 44.
British Nationality Act, 1948	11 & 12 Geo. 6. c. 56.
Merchant Shipping (Safety Convention) Act, 1949.	12, 13 & 14 Geo. 6. c. 43.
Income Tax Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 10.
Diplomatic Immunities (Commonwealth Countries and Republic of Ireland) Act, 1952.	15 & 16 Geo. 6. & 1 Eliz. 2. c. 18.
Visiting Forces Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 67.
Army Act, 1955	3 & 4 Eliz. 2. c. 18.
Air Force Act, 1955	3 & 4 Eliz. 2. c. 19.
Copyright Act, 1956	4 & 5 Eliz. 2. c. 74.
Naval Discipline Act, 1957	5 & 6 Eliz. 2. c. 53.
Import Duties Act, 1958	6 & 7 Eliz. 2. c. 6.
British Nationality Act, 1958	6 & 7 Eliz. 2. c. 10.
Emergency Laws (Repeal) Act, 1959	7 & 8 Eliz. 2. c. 19.

CHAPTER 53

Oil Burners (Standards) Act, 1960

ARRANGEMENT OF SECTIONS

Section

1. Safety standards and instructions for use of oil heaters.
2. Prohibition of sale, etc., of oil heaters or component parts not complying with regulations.
3. Inspection and testing of oil heaters and component parts.
4. Offences.
5. Power of local authority to prosecute.
6. Expenses.
7. Exercise of power to make regulations, or an order under s. 9.
8. Interpretation.
9. Short title, commencement and extent.